

		cause of action, i.e., the ‘gravamen’ of the cause of action. The nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.” (<i>Hensler v. City of Glendale</i> (1994) 8 Cal.4th 1, 22-23.) The complaint in <i>Vera v. REL-BC, LLC</i> (2021) 66 Cal.App.5th 57, 65 based a breach of contract claim on the failure to disclose material facts regarding alleged defects in a residential property sale. Plaintiff bases his claim on the same failure to disclose. (FAC, ¶¶ 28-31.) The court in <i>Vera</i> ruled the gravamen of the plaintiff’s claim was in fraud. (<i>Ibid.</i>) Thus, the gravamen of Plaintiff’s claim is also in fraud. “Within three years: [¶¶] (d) An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338(d).) The FAC alleges the purchase occurred in May 2021. (FAC, ¶ 9.) Plaintiff attached an email correspondence from June 4, 2021 to the FAC between his real estate agent and Defendants’ agent in which Plaintiff’s agent admits Plaintiff called about the allegedly fraudulently concealed defect. Thus, from the face of the FAC, the latest Plaintiff could have discovered the defect was June 4, 2021. Plaintiff filed his complaint on May 8, 2025. Therefore, Plaintiff’s first cause of action is barred by the statute of limitations. Accordingly, the Adams’ demurrer is sustained. Leave to amend is granted as it is not evident from the face of the FAC no breach of contract claim can be asserted.
3	Lee v. Hyundai Motor America 2025-01521906 Demurrer to complaint	Defendant PB/J Automotive Inc. dba Tustin Hyundai’s Demurrer to Plaintiff Sang Jik Lee’s Complaint is CONTINUED to October 12, 2026, at 1:45 p.m. in Department C15 as Defendant’s counsel did not sufficiently meet and confer prior to filing the demurrer. The case management conference is also continued to October 12, 2026, at 1:45 p.m. in Department C-15. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).)

		Counsel for Defendant states she sent Plaintiff's counsel a letter on 12/8/25 setting forth the grounds for demurrer and requesting counsel contact her to further discuss by telephone. (Richards Decl., ¶ 4, Ex. B.) Defendant's counsel did not receive a response and has not been able to meet and confer with Plaintiff regarding the demurrer, and Plaintiff remains unresponsive. (Richards Decl., ¶¶ 5, 9, 11.) This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar.
4	People's California, LLC v. Monterey Valley Pride 2024-01448432 Demurrer and MTS	<u>Demurrer</u> Defendant Dell Bailey's Demurrer, joined by Agriculture Business Innovations, LLC, is OVERRULED. Plaintiff is reminded to file a proof of service. Bailey's request for judicial notice is granted. The agreement defines "Claimants" as "Green Tents, LLC ..., Jason DeAngelo ... the individuals listed on the signature page of this Term Sheet who are all investors members of Agriculture Business Innovations, LLC ..., and the investor members of Sustainable Agriculture Solutions, LLC" The agreement also imposes certain obligations on Claimants. "Claimants agree that other than sales and/or transfers to People's, MVP will not sell or otherwise allow the transfer or sale of any People's Strains to any other person or entity at any time whatsoever without the written consent of People's. Claimants also agree to use all reasonable measures to prevent the proliferation of the genetic material of People's Strains to any third party." (RJN Ex. 1, ¶ 4C.) Plaintiff alleges moving Defendants breached this obligation: "Contracting Defendants permitted and authorized the transfer of People's Strains to third parties, including the sale of People's Strains to third parties for considerable profit." (FAC, ¶ 46.)